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CASE #	CASE NAME	HEARING NAME
CVPS2302595	GRAY VS REVERSE MORTGAGE FUNDING	MOTION TO SPECIALLY SET HEARING FOR MSJ BY SAM CHANDRA

Tentative Ruling: No tentative ruling. Hearing will be conducted on Monday, August 31, 2026, 8:30 a.m.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2403909	PALM DESERT SENIOR SOFTBALL ASSOCIATION VS GARCIA	MOTION FOR SUMMARY ADJUDICATION ON 1ST AMENDED COMPLAINT OF PALM DESERT SENIOR SOFTBALL ASSOCIATION BY PALM DESERT SENIOR SOFTBALL ASSOCIATION, JAMES W. SEAVEY, VERA NORRIS

Tentative Ruling: Granted in part.

Granted in part as to Issue 1 only as to the Association. Granted as to Issues 10 and 11. Denied as to Issues 2 through 9, Issue 12, and Issue 13.

Moving party to provide notice pursuant to CCP 1019.5.

This is an action for legal malpractice. Plaintiffs Palm Desert Senior Softball Association (the "Association"), James W. Seavey, and Verna Norris (collectively, "Plaintiffs"), alleges that the Association hired Defendants Aaron F. Garcia and the Law Offices of Aaron F. Garcia (collectively, "Defendants") to represent them in the underlying case, *Palm Desert Senior Softball Association v. Senior Softball of Palm Desert*, case no. PSC2000536 (the "Underlying Case"). Plaintiff Seavey is the Secretary/Treasurer of the Association. Plaintiff Norris is Seavey's wife and served as the President of the Association.

Plaintiffs allege that trial was set for 6/23/23 and that Garcia failed to comply with the Local Rule 3401 pretrial steps. On 6/20/23, Garcia allegedly emailed Seavey: "I cannot wait any longer. I have to advise the court the case settled. I am going to put the date of settlement as of today." Garcia then filed a CM-200 notice of settlement on 6/21/23 with the "Unconditional Settlement of Entire Case" box marked, and dated the same for 6/20/23. Plaintiffs allege that no director or officer of the Association signed any settlement documentation before at least 6/29/23. Plaintiffs further allege that the 10/20/19 board minutes reserved any "final decree/decision" to the board's approval and the President's signature. After the trial date passed, Norris signed a settlement agreement on 6/30/23. Plaintiffs however argue that it was obtained only after Garcia had threatened to withdraw as counsel, without a board meeting discussion on the settlement, and after losing the 6/23/23 trial setting. On 11/20/23, the court dismissed the Underlying Case with prejudice. The court order recites: "Notice of Settlement filed. No compliance with Local Rule 3401 prior to trial."

The operative First Amended Complaint ("FAC"), filed 7/31/24, asserts: (1) breach of fiduciary duties by attorney; (2) frauds, misrepresentations, and deceptions; (3) extrinsic fraud on the court; (4) attorney's professional negligence; and (5) money had and received. Trial is set for 10/2/26.

Plaintiffs' Motion for Summary Adjudication

Plaintiffs move for summary adjudication of 13 issues. They are: 2 asserted issues of duty, the 1st cause of action as to liability and the existence of compensable harm, and 10 affirmative defenses. Plaintiffs argue that Defendants represented the Association in the Underlying Case, and so Defendants owed the Association fiduciary duties arising from the attorney-client relationship. Plaintiffs argue that the Association has final settlement authority and that Defendants lacked authority to file the settlement notice. In support, Plaintiffs submit Garcia's 6/20 email, Defendants' admission that no the Association director/officer had signed a settlement document before at least June 29, and the dismissal order citing both the settlement notice and Local Rule 3401 non-compliance. Apart from the above issues, Plaintiffs seek adjudication of the 1st cause of action (fiduciary breach) as to liability and compensable harm, while reserving calculation of damages for trial. Plaintiffs further seek adjudication against 10 affirmative defenses, arguing that Defendants' discovery responses have no facts, witnesses, or documents supporting the defenses. Plaintiffs assert that the 6/30/23 signature obtained while Garcia's withdrawal motion was pending is not ratification with knowledge of material facts, and that they did not authorize Garcia's CM-200 filing.

In opposition, Defendants argue that Plaintiffs improperly frame questions of breach and authority as "issues of duty." Defendants argue that Plaintiffs cannot seek piecemeal determinations of various "duties" rather than adjudication of an entire cause of action or affirmative defense. (CCP §437c.) Defendants argue that expert testimony is required regarding the alleged breach, that Seavey held himself out as the Association's sole decision-maker, while later authorized a settlement in principle, and procured Norris's signature. In support, Defendants rely on a 6/12/23 billing entry stating that Seavey told him to settle, an alleged mutual walkaway settlement, and Norris's later signature to argue for defenses such as authorization, waiver and estoppel, consent, ratification, comparative fault and unclean-hands, and ratification. As to the challenged affirmative defenses, Defendants also argue that their evidence shows sufficient facts.

In reply, Plaintiffs argue that the existence of the attorney-client relationship and scope of the resulting duties are questions of law. They argue that Garcia's belief is not the client's consent. Plaintiffs concede that *Paramount Petroleum Corp. v. Superior Court* may preclude Issue 3 as framed, but request that any denial rest solely on that procedural ground. Plaintiffs further argue that Defendants' opposition does not brief Issues 10, 11, or 13.

Summary Adjudication

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, [or] that there is no merit to a claim for damages. . ." (CCP § 437c(f)(1).) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (*Ibid.*) A plaintiff moving for summary adjudication bears the initial burden to prove each element of a cause of action or to show that an affirmative defense has no merit. (*Id.*, §437c(p)(1).) A moving defendant must show that one or more elements of each challenged cause of action cannot be established or that a complete defense exists. (*Id.*, §437c(p)(2).)

"Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airlines v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75

Cal.App.4th 832, 840.) “Instead, the evidence most favorable to plaintiff must be accepted as true and conflicting evidence must be disregarded. The court must give ‘to the plaintiff[s] evidence all the value to which it is legally entitled, ... indulging every legitimate inference which may be drawn from the evidence in plaintiff[s] favor’ ” (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.)

An issue of duty may be summarily adjudicated without disposing of the entire cause of action. (*Linden Partners v. Wilshire Linden Associates* (1998) 62 Cal.App.4th 508, 522.) By contrast, a court may not enter partial summary adjudication on the issue of liability, leaving damages to be tried at a later time. (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 243, [a decision on the issue of liability does not result in a judgment until the issue of damages is resolved.])

Requests for Judicial Notice (RJN)

Plaintiffs seek notice of 11 exhibits: filings and orders from the Underlying Case, the FAC and Answer in this action, the Association’s Articles of Incorporation, and the Association’s board minutes filed in the Underlying Case. The court will judicially notice the existence, filing dates, and effect of court records under Evid. Code §452(d). However, the court cannot take judicial notice of the truth of disputed facts. GRANTED/DENIED

Evidentiary Objection(s)

With its opposition, Defendants submit 6 objections to Plaintiffs’ supporting evidence.

Defense objections to Nos. 4, 5 & 6 as to Plaintiffs’ use of their own deposition testimonies and own interrogatory responses are SUSTAINED.

The court declines to rule on the remaining objections as not material to the court’s ruling. (CCP § 437c(q).)

Plaintiffs also submit 8 objections to Defendants’ evidence. SUSTAINED with the exception that the court has considered Garcia’s testimony concerning his own communications and his asserted understanding. Any remaining objections need not be decided because they are not material to the court’s ruling. (CCP § 437c(q).)

Issues

Here, Plaintiffs seek adjudication of 2 asserted issues of duty, the 1st cause of action as to liability and the existence of compensable harm, and 10 affirmative defenses.

Issue 1: Existence of Duties Arising from the Attorney-Client Relationship

Defendants admit that the Association retained the Law Offices of Aaron F. Garcia on 10/30/19. (Defendants’ UF p. 2, #1.) Defendants admit that Garcia filed the complaint in the Underlying Case for the Association. (UF p. 2, #5; Garcia Decl., ¶ 5.) Defendants also admit that he remained counsel of record until 8/23/23. (UF p. 2, #3 & p. 15, #22; Garcia Decl., ¶ 5.) The court therefore adjudicates that Defendants owed the Association the fiduciary and professional duties arising from the attorney-client relationship during the representation. (Cal. Rules Prof. Conduct, rules 1.2(a), 1.7, 1.16(d).) The evidence, however, does not establish that Defendants owed a duty to Plaintiff Seavey or Plaintiff Norris. GRANTED IN PART, BUT ONLY AS TO THE ASSOCIATION, NOT SEAVEY OR NORRIS.

Issue 2: The Settlement Authority for the Underlying Case

The client has the ultimate authority to settle or stipulate. (Cal. Rules Prof. Conduct, rule 1.2(a); *Blanton v. Womancare, Inc.* (1985) 38 Cal.3d 396, 404.) Also, Corp. Code §7210 places the “activities and affairs of a corporation, ... and all corporate powers” of a nonprofit corporation “under the ultimate direction of the board.”

In support of their motion, Plaintiffs rely on the Association’s 10/20/19 board minutes, which allegedly reserve the “final decree/decision” to the Board’s approval and the President’s signature (Plaintiffs’ Additional Material Fact (“AMF”), #8). Plaintiffs also rely on the 6/20/23 email from Garcia stating that he “cannot wait any longer” and “have to advise the court the case settled” (AMF #11). Additionally, Plaintiffs testified that no board meeting was held before the President signed the settlement (AMF #19), and that the Defendants admit that no director or officer of the Association signed a settlement document before at least 6/29/23 (AMF #13).

To counter, Defendants rely on Garcia’s declaration that Seavey was “a duly appointed officer of [the Association] and was authorized to act on behalf of and *bind* [the Association]. Mr. Seavey was the only [Association] representative I interacted with during my representation ... and served as the client contact for purposes of developing the litigation strategy and objectives.” (Garcia Decl. ¶ 4.) Garcia further declares that “it was my understanding that Seavey agreed to settle the case for a mutual walkaway,” and the contemporaneous billing entry stating, “Spoke with client. He told me to settle case.” (*Id.*, ¶ 10.) Garcia also submits an email from Seavey on 6/22/20 setting out proposed settlement demands. (UF p. 10 #26.) He declares that during the settlement discussions, “Seavey began to convey to me a desire to obtain remedies or relief appeared to me to be beyond what I viewed as legally obtainable and consistent with the relief sought in the operative complaint.” (Garcia Decl. ¶ 7.)

Here, the competing evidence permits more than one reasonable inference concerning actual/apparent authority and whether any authorization was conditional. These are questions of fact that cannot be resolved on summary adjudication. DENIED

Issue 3: First Cause of Action for Breach of Fiduciary Duty (Liability and Existence of Compensable Harm)

Plaintiffs seek adjudication of *liability* and the existence of *compensable harm*, while reserving the amount of damages for trial. However, that relief is not available. (*Paramount Petroleum Corp. v. Superior Court, supra*, 227 Cal.App.4th at 243.) In *Paramount*, the court held that CCP §437c(f)(1) “makes no provision for a partial summary judgment as to liability. Even summary adjudication may be granted only in limited instances.” (*Id.*) It further held that it is not appropriate to grant summary adjudication if “issues of the calculation of damages apparently remain to be determined.” (*Id.*, [“summary judgment or adjudication improper where amount of damages raises factual issue.”]) Therefore, Plaintiffs may not obtain an adjudication by leaving the amount of damages for later determination.

Alternatively, the record also presents triable issues. As discussed, Plaintiffs’ evidence suggests that Garcia filed the CM-200 notice without approval, while also failed to comply with Local Rule 3401 requirements. By contrast, Defendants’ evidence suggests that Seavey held himself out as the representative of the Association able to bind and authorize a settlement, and that Garcia believed that he had authority to notify the court. (Garcia Decl., ¶¶ 4, 7, 10.) The court may not weigh the evidence or determine the credibility of the evidence, nor to decide on Garcia’s state of mind on this motion. The amount of damages and causation also remain in dispute. DENIED

Issue 4: Seventeenth Affirmative Defense (For failure to State a Claim/general Denial)

Plaintiffs argue that “[t]he Seventeenth Affirmative Defense for failure to state a claim / general denial is without merit because Defendants’ verified response to Form Interrogatory No. 15.1 identifies no facts, witnesses, or documents supporting the defense.”

Here, a contention that the operative pleading “fails to state a claim” is a legal question. It is not a factual defense that must be supported by discovery responses. Also, a general denial is not itself an affirmative defense that can be eliminated through summary adjudication. From the present records, Plaintiffs have not shown that every claim in the complaint is legally sufficient as pled against every defendant and for every plaintiff. Thus, Plaintiffs have not carried their burden as to Issue 4 by simply pointing to the lack of facts or witnesses listed in Defendants’ discovery response. DENIED

Issue 5: Second Affirmative Defense (Litigation Privilege)

The litigation privilege protects attorneys, judges, jurors, witnesses, and other court personnel from tort liability for any “publication or broadcast” made “[i]n any ... judicial proceeding....” (Civ. Code § 47(b).) “Under the usual formulation, the litigation privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Kolar v. Donahue, McIntosh & Hammerton* (2006) 145 Cal.App.4th 1532, 1540, international quotation marks omitted.) However, the privilege does not apply to an expert witness’ trial testimony in a malpractice suit by the expert’s own client. (*Id.*, at 1541.)

Here, Plaintiffs seek to eliminate the defense in its entirety. However, the challenged communications include allegedly false statements in the CM-200 settlement notice, withdrawal papers, and Garcia’s 8/22/23 sworn declaration in the Underlying Case. (FAC, ¶¶ 91–123; Pls.’ RJN Exs. 1, 2, 5, 6.) On this record, one cannot conclude that the defense lacks merit as to every claim or theory presented. DENIED

Issue 6: Fourth Affirmative Defense (In Pari Delicto)

Plaintiffs argue that “[t]he Fourth Affirmative Defense for in pari delicto is without merit because Defendants’ verified response to RFA, Set One No. 3 conclusively admits that the Underlying Case was not a derivative lawsuit.”

However, Defendants’ admission that the Underlying Case was not a derivative action establishes only the matter admitted. (CCP § 2033.410(a).) It does not negate every possible factual basis for in pari delicto. Defendants, in opposition, rely on Seavey’s conduct (by allegedly holding himself out as an authorized decision-maker), on his settlement authorization, and later procurement of the President’s signature on the settlement document. (Defendants’ Additional Material Facts and Supporting Evidence (“AUMF”), p. 65, ##12-19.) Whether that theory would ultimately succeed is a question not to be resolved on this motion. The admission on derivative status does not completely dispose of the defense. DENIED

Issue 7: Fifth Affirmative Defense (Estoppel and Waiver)

Plaintiffs argue that Defendants’ defense for estoppel and waiver is without merit because Defendants’ discovery response admits that no Association representatives signed a settlement document before at least 6/29/23.

Similarly, Defendants' admission in their discovery response does not conclusively negate any alleged oral authorization, waiver, or course of conduct in support of waiver/estoppel. Again, Defendants' billing entry and course-of-dealing evidence create a factual dispute. (Garcia Decl., ¶ 10.) DENIED

Issue 8: Sixth Affirmative Defense (Consent)

Consent to settlement need not be only evidenced by a signed agreement.

Here, Defendants submit evidence of alleged oral consent before filing the CM-200 notice of settlement. (Garcia Decl., ¶ 10.) Plaintiffs also submit competing evidence that the Association's Board reserved final authority and never approved a settlement. (AMF #8). Those competing accounts create a triable issue. DENIED

Issue 9: First & Seventh Affirmative Defenses (Comparative Fault/Unclean Hands)

Defendants argue that the Association and Seavey contributed by presenting Seavey as the authorized decision-maker, allegedly instructing Garcia to settle, obtaining the President's later signature, and eventually changing their positions. (AUMF ##12-19.) Plaintiffs dispute those facts and their significance.

Here, Plaintiffs have not completely negated Defendants' combined defenses of comparative fault and unclean hands. Plaintiffs have not carried their burden. DENIED

Issue 10: Twelfth Affirmative Defense (Res Judicata)

Claim preclusion "applies only to the relitigation of the same cause of action *between the same parties* or those in privity with them." (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824.) Issue preclusion requires "an identical issue ... actually litigated and necessarily decided in the first suit" and "asserted against one who was a party in the first suit or one in privity with that party."

Here, the Underlying Case involved the Association and the softball-organization defendants. However, the present case concerns alleged legal malpractice by the Association's former counsel. The 11/20/23 dismissal did not adjudicate these claims against Defendants. GRANTED

Issue 11: Thirteenth Affirmative Defense (Judgmental Immunity)

The judgmental immunity doctrine protects an attorney's informed judgment on an unsettled legal question when the attorney performs sufficient research and makes an informed judgment. (*Village Nurseries, L.P. v. Greenbaum* (2002) 101 Cal.App.4th 26, 28.) "[I]n determining whether to grant summary judgment based on the judgmental immunity doctrine, it is an attorney who has conducted a thorough, contemporaneous research effort, demonstrated detailed knowledge of legal developments and debate in the field, and made a decision which represented a reasoned exercise of an informed judgment grounded upon a professional evaluation of applicable legal principles, who may be entitled to judgment as a matter of law." (*Id.*, at 37.)

Here, Defendants identify no unsettled question of law, any particular research, or reasoned analysis concerning settlement authority, settlement notice (CM-200), or the relevant local rules. Defendants verified FROG no. 15.1 response identifies no supporting facts, witnesses, or documents; instead, it states that the defense "was pled to avoid waiver."

Defendants' belief that Seavey authorized settlement does not constitute a judgmental immunity defense. Likewise, disagreement about the value of trying the Underlying Case is unable to support a judgmental immunity defense. GRANTED

Issue 12: Fifteenth Affirmative Defense (Ratification)

Ratification is "the voluntary election by a person to adopt in some manner as his own an act which was purportedly done on his behalf by another person, the effect of which, as to some or all persons, is to treat the act as if originally authorized by him." (*Rakestraw v. Rodrigues* (1972) 8 Cal.3d 67, 73.) There is a requirement of knowledge of the material facts essential to voluntary ratification. (*Id.* at 74.)

Here, Defendants argue for ratification based on Norris's later signature and her contractual representation of authority. (AUMF p. 133, #18.) Plaintiffs, on the other hand, rely on the absence of a board meeting, the "losing" of the 6/23/23 trial setting, the pending withdrawal motion, and the absence of any pre-approval and communication between Garcia and Norris. (AUMF ##19-21.) The evidence here permits competing inferences on knowledge, authorization, and the scope of any ratification. These cannot be resolved via summary adjudication. DENIED

Issue 13: Sixteenth Affirmative Defense (Release/Accord and Satisfaction)

Without repeating the above, Plaintiffs rely on the absence of a signed settlement document before at least 06/29/23 and on Defendants' discovery responses that allegedly contain no facts. Defendants, however, place the later signed settlement agreement in evidence. (AUMF p. 158, #18.) The agreement's validity and scope, and the negotiation before and after the signing are factual disputes that the record cannot conclusively resolve. Here, Plaintiffs combine the separate concept of accord and satisfaction with release all under Issue 13 and have not eliminated the combined defense in its entirety. DENIED

Grant Issue 1 in part only as to the Association. Grant as to Issues 10 and 11. Deny as to Issues 2 through 9, Issue 12, and Issue 13.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2403909	PALM DESERT SENIOR SOFTBALL ASSOCIATION VS GARCIA	HEARING ON MOTION FOR SUMMARY JUDGMENT ON 1ST AMENDED COMPLAINT OF PALM DESERT SENIOR SOFTBALL ASSOCIATION

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is an action for legal malpractice. Plaintiffs Palm Desert Senior Softball Association (the "Association"), James W. Seavey, and Verna Norris (collectively, "Plaintiffs"), alleges that the Association hired Defendants Aaron F. Garcia and the Law Offices of Aaron F. Garcia (collectively, "Defendants") to represent them in the underlying case, *Palm Desert Senior Softball Association v. Senior Softball of Palm Desert*, case no. PSC2000536 (the "Underlying Case"). Plaintiff Seavey is the Secretary/Treasurer of the Association. Plaintiff Norris is Seavey's wife and served as the President of the Association.

Plaintiffs allege that trial was set for 6/23/23 and that Garcia failed to comply with the Local Rule 3401 pretrial steps. On 6/20/23, Garcia allegedly emailed Seavey: "I cannot wait any longer. I